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Case Number: 23TRCV02009 Hearing Date: August 7, 2026 Dept: P

Motion for New Trial

Moving Party: Plaintiffs Christopher T. LaForce and Carolyn M. LaForce

Responding Party: Defendant John LaForce

RULING

The court considered the moving papers and opposition. No reply was filed. The court DENIES plaintiffs' motion for a new trial.

PROCEDURAL BACKGROUND

On June 21, 2023, plaintiffs Christopher LaForce ("Christopher") and Carolyn M. LaForce ("Carolyn") (hereinafter "Plaintiffs") filed a complaint against defendants John LaForce, as Trustee of the John LaForce Trust Dated December 16, 2025, John LaForce, as Trustee of The 131 Manufacturing Trust, John LaForce, individually ("Defendant" or "John") (collectively, "Defendants"), and DOES 1 through 50, inclusive, alleging causes of action for: (1) Breach of Promissory Note with Personal Guarantee; (2) Enforcement of Personal Guarantee; (3) Breach of Loan Agreement; and (4) Common Counts.

On August 9, 2023, Defendants filed an answer to the complaint asserting a general denial and twenty-two (22) named affirmative defenses including, but not limited to, estoppel, unclean hands, and waiver.

On January 23, 2024, this action was reassigned from the Honorable Ronald F. Frank to the Honorable David K. Reinert in Department P at Torrance Courthouse effective January 29, 2024.

On January 9, 2026, Defendant filed a motion for an order bifurcating, severing, and/or directing the order of proof to try Defendant's dispositive equitable affirmative defenses first. Plaintiffs opposed the motion.

On January 22, 2026, Plaintiffs filed their trial brief.

On January 23, 2026, Defendant filed a trial brief.

On January 30, 2026, after hearing, the Court granted Defendant's motion to bifurcate. (01/30/26 Minute Order at p. 1.)

On February 17, 2026, non-jury trial in this action commenced. (02/17/26 Minute Order at p. 1.) On such date, Plaintiffs rested their case. (Id.) Also, on such date, Defendants put on their case in chief. (Id.)

Trial continued in this action on February 18, 2026, and on February 19, 2026. (See 02/18/26 and 02/19/26 Minute Orders.) On February 19, 2026, Defendants rested their case. (See 02/19/26 Minute Order at p. 1.) The Court ordered the parties to file closing briefs. (Id.)

On April 7, 2026, after receipt of the parties' closing briefs, the Court took the matter under submission. (04/07/26 Minute Order at p. 1.)

On April 24, 2026, the Court issued a tentative statement of decision. (04/24/26 Minute Order at p. 1.) The Court entered judgment "for Defendants as to each cause of action pled in the [c]omplaint." (Id.)

On May 4, 2026, Plaintiffs filed a supplemental request for a statement of decision after the issuance of the Court's tentative statement of decision.

On May 5, 2026, Defendant filed a reply and objection to Plaintiffs' supplemental request and objections to tentative statement of decision.

On May 11, 2026, the Court issued its final statement of decision. The Court found, inter alia, that "the Defendants are not liable for any of the causes of action brought by Plaintiffs at trial in any amount." (05/11/26 Statement of Decision, p. 15:1-2.)

On May 26, 2026, judgment was entered "in favor of Defendant John La Force, and against Plaintiffs . . . on each and every cause of action in Plaintiffs' complaint" (05/26/26 Judgment at p. 2:7-9.)

On May 29, 2026, the Court entered the operative amended judgment in favor of Defendant and against Plaintiffs. (05/29/26 Amended Judgment at p. 2:7-9.)

On June 9, 2026, Plaintiffs filed and served a notice of intention to move for a new trial. Plaintiffs seek an order vacating "the [j]udgment entered on 26 May 2026 in Defendant's favor, and to enter judgment in favor of Plaintiffs and against Defendant, [John LaForce], individually and as a trustee in the full amount prayed for in Plaintiffs' [c]omplaint." (06/09/26 Notice of Intention to Move for New Trial, p. 1:5-11.)

Plaintiffs move for a new trial on the following grounds, which Plaintiffs contend prevented Plaintiffs from receiving a fair trial: (1) irregularity in the proceedings of the Court; (2) improper orders of the Court; (3) abuse of discretion by the Court; (4) accident or surprise, or other acts, that ordinary prudence could not have guarded against; (5) newly discovered evidence material to the moving party that could not have been discovered with reasonable diligence and produced at trial; (6) inadequate damages; (7) insufficiency of the evidence to justify the decision of the Court; (8) the decision of the Court is against the law; and (9) error in law occurring at the trial and excepted to by the moving party. (See 06/09/26 Notice of Intention to Move for New Trial, pp. 1-2.)

On June 10, 2026, Defendants filed and served notice of entry of the operative amended judgment on counsel for Plaintiffs.

On June 18, 2026, Plaintiffs filed and served a declaration from their counsel and an exhibit list in support of their motion for new trial.

On June 24, 2026, Plaintiffs filed a memorandum of points and authorities in support of their motion for new trial; however, the memorandum of points and authorities was served on June 18, 2026.

On June 29, 2026, Defendant filed and served an opposition to the motion for new trial.

On July 16, 2026, Plaintiffs filed a notice of appeal of the Court's May 26, 2026 judgment.

On July 21, 2026, the Court granted the ex parte application of Plaintiffs to advance the hearing date on the motion for new trial. (07/21/26 Minute Order at p. 1.) The hearing on the motion was advanced and continued from August 11, 2026 to August 7, 2026. (Id.)

On July 22, 2026, Plaintiffs filed a notice of appeal of the Court's May 29, 2026 amended judgment.

As of Tuesday, August 4, 2026, as of 1:55 p.m., no reply has been filed.

Initially, although not filed with the Court within 10 days of filing of the notice of intent to move for new trial in compliance with CCP § 659a, the Court will consider the memorandum of Plaintiffs in support of the motion. The opposition is silent on the untimely filing of the memorandum of points and authorities.

Despite the pending appeal, this Court may hear and rule upon Plaintiffs' motion for new trial. "A motion for new trial is recognized to be a matter collateral to the judgment and the trial court retains jurisdiction to hear and determine a motion for new trial after an appeal has been taken from the judgment." (Neff v. Ernst (1957) 48 Cal.2d 628, 634.)

FACTUAL BACKGROUND

This action arises from the alleged breach of a promissory note. Plaintiffs "are assignees and holders of all the rights described in the Assignment of All Claims and Rights (Assignment)" (Compl. ¶ 1, Ex. 1 [italics in original].) Plaintiffs allege, inter alia, that "[o]n or about December 16, 2022, John, as Trustee of [The John LaForce Trust dated December 16, 2005], executed that certain Promissory Note (Note) With Personal Guarantee" (Compl. ¶ 7, Ex. 2.) "By its terms, the Note provides that the payment obligations thereunder are to be performed in Rancho Palos Verdes, County of Los Angeles." (Id.) Plaintiffs allege that they "are assignees and holders of all the rights of the original payee described in said Note as Donald J. LaForce and Mary J. LaForce, as Trustees of the LaForce Family Trust dated December 20, 1994." (Compl. ¶ 8.) "Defendants breached said Note by failing and refusing to pay all amounts due thereunder, and also by repudiating Defendants' obligations to make the further payments called for under said Note." (Compl. ¶ 9.) According to Plaintiffs, after taking into account interest payments "and . . . forgiveness, as of May 1, 2023, there was still owing and unpaid under the Note the amount of \$1,543,750.00." (Compl. ¶ 11.)

LEGAL STANDARD

Code of Civil Procedure Section 657 states, in part, as follows:

"The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.
2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.
3. Accident or surprise, which ordinary prudence could not have guarded against.
4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.
5. Excessive or inadequate damages.
6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against the law.
7. Error in law, occurring at the trial and excepted to by the party making the application."

(Code Civ. Proc. § 657(1)-(7).)

"When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court's reason or reasons for granting the new trial upon each ground stated." (Code Civ. Proc. § 657.) "A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Id. [italics added].)

"When the application is made for a cause mentioned in the first, second, third and fourth subdivisions of Section 657, it must be made upon affidavits; otherwise it must be made on the minutes of the court." (Code Civ. Proc. § 658.)

"Within 10 days of filing the notice [of intention to move for new trial], the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion. The other parties shall have 10 days after that service within which to serve upon the moving party and file any opposing briefs and accompanying documents, including counter-affidavits. The moving party shall have five days after that service to file any reply brief and accompanying documents. These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judgment for an additional period not to exceed 10 days." (Code Civ. Proc. § 659a.)

EVIDENTIARY OBJECTIONS

The Court **OVERRULES** Defendant's evidentiary objections to paragraphs 1 through 32, inclusive, of the declaration of Michael Leight in support of the motion. Objections based on lack of foundation, hearsay, and lack of personal knowledge should be overruled unless there is a reason to believe that a witness, including an expert witness, would not be able to lay a foundation and authenticate these facts at trial. (See *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal. 5th 931, 947-948.)

Here, Michael Leight is counsel for Plaintiffs and therefore has personal knowledge of the facts stated in his declaration. (Declaration of Michael Leight Filed June 18, 2026 ("Leight Decl.") ¶¶ 2-3.) Thus, the Court will consider the declaration of Attorney Leight in its entirety.

DISCUSSION

Moving Party's Argument

Plaintiffs contend that a new trial is warranted because: (1) the Court made a fundamental error in that it abused its discretion, there is insufficient evidence to justify the decision, the decision is against the law, and there is an error in law that occurred at the trial and excepted by Plaintiffs; (2) the Court allowed improper hearsay as to statements made by decedent Don LaForce to John to be admitted into evidence; (3) the Court erroneously refused to apply Probate Code § 21700 to bar John's claims; (4) the Court's refusal to apply the Parol Evidence Rule has resulted in a miscarriage of justice which requires a new trial; (5) the Court allowed John to introduce evidence and argument trying his affirmative defenses even though John admitted he failed to properly plead those affirmative defenses; (6) the Court committed reversible error by concluding that John pled and proved the doctrine of equitable estoppel by clear and convincing evidence; (7) the Court committed reversible error when it allowed the doctrine of equitable estoppel in this case and then when it failed to limit its application to the period from March 8, 2007 through March 11, 2009, which is when John sent his father an email admitting that he knew he was not going to inherit the Note; and (8) Plaintiffs are entitled to a new trial on the Court's finding on the loan agreement.

Opposing Party's Argument

On opposition, Defendant raises the following arguments: (1) Plaintiffs' motion must be denied because it fails to present the entire record while ignoring and outright misstating adverse evidence, even claiming certain adverse evidence in the record they omitted does not exist; (2) Plaintiffs' legal arguments claiming abuse of discretion and error of law fail to acknowledge, much less distinguish, the contrary controlling law refuting their arguments based on hearsay and parole evidence; and (3) Plaintiffs' post-trial assertion that they did not intend to waive argument on the loan agreement is unsupported by the record.

Reply Arguments

To date, no reply has been filed.

Merits of the Motion

A. Plaintiffs' Failure to Present the Entire Record

Defendant contends that "Plaintiffs' memorandum of points and authorities repeatedly cites to Code of Civil Procedure section 657(6), claiming insufficiency of the evidence to support the Court's judgment." (Opp'n at p. 3:6-7.) Defendant argues that "Plaintiffs failed to include the entire record in their moving papers, selectively including only portions of the trial testimony they believe support their position and omitting all but three trial exhibits admitted. On this basis alone their motion must be denied." (Opp'n at p. 4:7-9.)

"A motion for new trial can only be granted on the ground specified in the notice of intent to move for new trial." (Hart v. County of Los Angeles (2011) 197 Cal.App.4th 1391, 1409.) A court cannot grant a motion for new trial based upon insufficiency of the evidence "unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the . . . jury clearly should have reached a different verdict or decision." (Ibid.) A motion for new trial may be heard and ruled upon in the absence of a court reporter's transcript memorializing the trial proceedings. (Row v. Biehl (1933) 133 Cal.App.263, 264-265.)

The Court has reviewed the declaration of Attorney Leight and the compendium of evidence presented in support of the motion. Relevantly, the declaration of Attorney Leight sets forth, *inter alia*, excerpts of testimony of John and Michael Madden. (Leight Decl. ¶ 29.) Attorney Leight also sets forth portions of testimony of William Wood and Misty LaForce. (Id.) Plaintiffs have only presented portions of testimony from the aforementioned witnesses. (Plaintiffs' Compendium of Exhibits Filed June 18, 2026 at Exs. 17-21.) Critically, Plaintiffs have not presented the entirety of the court reporter transcripts concerning the testimony of either John, Michael Madden, William Wood, or Misty LaForce. (Id.)

Additionally, a substantial portion of the evidence of Plaintiffs consists of pleadings filed in this action including, but not limited to, the complaint, the answer of Defendant, and the parties' trial briefs. (See Plaintiffs' Compendium of Exhibits Filed June 18, 2026 at Exs. 1-11.) Additionally, Plaintiffs present: (1) the Note (Compendium of Exhibits at Ex. 22); (2) the Loan Agreement dated February 1, 2020 (Id. at Ex. 23); and (3) an e-mail from John to Don LaForce dated March 11, 2009 (Id. at Ex. 24). To the contrary, in support of the opposition, Defendant provides numerous admitted trial exhibits. (See generally Defendant's Evidence Compendium Filed June 29, 2026.)

In their notice of intention to move for new trial, Plaintiffs indicated that they move for a new trial based on each of the grounds set forth in Code Civ. Proc. § 657. However, the memorandum of points and authorities in support of the motion only cites to Code Civ. Proc. §§ 657(1), 657(5), 657(6), and 657(7) as grounds for new trial. A motion for new trial made pursuant to CCP §§ 657(1)-(4) "must be made upon affidavits." (Code Civ. Proc. § 658.) The declaration of Mr. Leight does not state that there was: (1) irregularity in the proceedings of the Court; (2) jury misconduct; (3) accident or surprise, which ordinary prudence could not have guarded against; or (4) newly discovered evidence, which Plaintiffs could not, with reasonable diligence, have discovered and produced at the trial. (Code Civ. Proc. §§ 657(1)-(4).) "In law and motion practice, factual evidence is supplied to the court by way of declarations." (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.) Thus, Plaintiffs have not shown any grounds for relief pursuant to CCP §§ 657(1)-(4).

Also, the declaration of Mr. Leight does not state unequivocally that there was any of the following: (1) excessive or inadequate damages; (2) insufficient evidence to justify the verdict; or (3) an error in law occurring at trial and excepted by Plaintiffs. (Code Civ. Proc. §§ 657(5), 657(6), and 657(7).) Moreover, as will be explained below, the minutes and records of this Court do not show the existence of any of the circumstances articulated in CCP §§ 657(5), 657(6), or 657(7).

Critically, although asserting that there was insufficient evidence to support the Court's judgment, Plaintiffs have not presented a complete record which includes the entirety of the transcripts containing witness testimony. This Court has "no obligation to undertake its own search of the record backwards and forwards to try and figure out how the law applies to the facts." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.) The Court does not find a basis for granting a new trial based upon insufficiency of the evidence pursuant to Code Civ. Proc. § 657(6). As stated in *Slone v. El Centro Regional Medical Center* (2024) 106 Cal.App.5th 1160, 1174: "As with all substantial evidence challenges, an appellant challenging [a finding of fact] must lay out the evidence favorable to the other side and show why it is lacking. Failure to do so is fatal. A reviewing court will not independently review the record to make up for appellant's failure to carry its burden."

Therefore, Plaintiffs' failure to present the entire record—as well as the insufficient declaration of Mr. Leight—precludes the granting of relief pursuant to CCP §§ 657(1), 657(2), 657(3), 657(4), or 657(6).

B. The Issue of Hearsay

Plaintiffs contend that "[t]he basis of all of the rulings made in this case favorable to John and adverse to Plaintiffs is the [C]ourt's erroneous admission, in violation of the hearsay rule and the Parol Evidence Rule, of statements attributed to [Don LaForce] (Don)" (Memo. of Ps and As at p. 1:20-23.) Further, Plaintiffs assert that the intent of Don for John to inherit the Note "is irrelevant because the basis of John's defenses is not what was in Don's [mind], but what Don allegedly [said] to John." (Id. at p. 2:9-13.) Plaintiffs contend that Evidence Code § 1250 does not support the Court's rulings "as justification for overruling Plaintiffs' hearsay objections to statements attributed to Don by John." (Id. at p. 3:18-20.)

In its final statement of decision, the Court stated “[a]t trial, John testified that there was an oral agreement between he and Don wherein Don agreed that he would cause John to inherit the Note upon his death.” (Final Statement of Decision Filed May 11, 2026 (“Statement of Decision”) at p. 5:17-18.) Further, the Court indicated that “the evidence that it was Don’s intention for John to inherit the Note to be overwhelming. The testimony of each witness regarding the topic was credible and consistent with the other witnesses. Moreover, the structure of the agreement would be nonsensical unless this was Don’s intent. As John testified, there was no pre-payment penalty in the Note and no reason for John not to pay it in full upon receipt of the Besam money.” (Id. at p. 6:9-13.)

“Hearsay evidence is evidence of a statement that was made other than by a witness while testifying at the hearing and that is offered to prove the truth of the matter stated.” (Evid. Code § 1200(a).) “Except as provided by law, hearsay evidence is inadmissible.” (Evid. Code § 1200(b).)

“When a right, title, or interest in any property or claim asserted by a party to a civil action requires a determination that a right, title, or interest exists or existed in the declarant, evidence of a statement made by the declarant during the time the party now claims the declarant was the holder of the right, title, or interest, is as admissible against the party as it would be if offered against the declarant in an action involving that right, title, or interest.” (Evid. Code § 1225.)

Evidence Code 1250 provides:

“(a) Subject to Section 1252, evidence of a statement of the declarant’s then existing state of mind, emotion, or physical sensation (including a statement of intent, plan, motive, design, mental feeling, pain, or bodily health) is not made inadmissible by the hearsay rule when:

(1) The evidence is offered to prove the declarant’s state of mind, emotion, or physical sensation at that time or at any other time when it is itself an issue in the action; or

(2) The evidence is offered to prove or explain acts or conduct of the declarant.

(b) This section does not make admissible evidence of a statement of memory or belief to prove the fact remembered or believed.”

(Evid. Code § 1250.)

“Evidence of a statement is inadmissible under this article if the statement was made under circumstances such as to indicate its lack of trustworthiness.” (Evid. Code § 1252.)

The Court does not find the contention of Plaintiffs persuasive that the Court improperly allowed statements attributed to Don into evidence. As stated in the Statement of Decision, Don made statements of fact that John would inherit the Note. (Statement of Decision, pp. 5-6.) It follows that the intent of Don is relevant as it is related to the oral agreement between John and Don concerning the Note. As the Court stated: “[T]he structure of the agreement would be nonsensical unless this was Don’s intent.” (Statement of Decision, p. 6:11-12.) Further, the intent of Don is relevant as a “rational interpretation [of a writing] requires at least a preliminary consideration of all credible evidence offered to prove the intention of the parties.” (Pacific Gas & Elec. Co. v. G.W. Thomas Drayage & Rigging Co. (1968) 69 Cal.2d 33, 39-40.)

The Court already addressed the hearsay issue in its statement of decision. The Court stated that “Plaintiffs assert that Evidence Code §1250 does not apply to Don’s out of court statements regarding the disposition of the Note because they were made in circumstances indicating a lack of trustworthiness . . . [t]he court disagrees and declines to alter its prior evidentiary rulings as to these statements.” (Statement of Decision, p. 8:21-24.) The Court again finds that the statements attributed to Don were properly admitted. John testified at trial that Don informed him that he would inherit the note if he

refrained from paying it off and made only the interest payments. (See Leight Decl. ¶ 29; see also Defendant's Compendium of Exhibits, Trial Transcript Day 1 & 2 at pp. 93:20-94:13.) Michael Madden testified that Don stated that he wanted John to inherit the Note. (Id. at p. 164:9-28.) William Wood testified that Don told him that he wanted John to inherit the Note upon his death. (Defendant's Compendium of Exhibits, Trial Transcript Day 3 at p. 311:3-11.) Molly LaForce also testified that Don wished for John to inherit the Note. (Id. at p. 344:2-11.) Erik Huber also testified as to Don's intent for John to inherit the Note. (Id. at p. 357:7-14.)

Thus, the testimony of the John, Michael Madden, William Wood, Molly LaForce, and Erik Huber, taken together, all lead to the finding of overwhelming evidence "that it was Don's intention for John to inherit the Note" (Statement of Decision, p. 6:9-10.) Also, Don memorialized in an email that he was to give John the Note upon his death. (Defendant's Trial Exhibit No. 110.)

In sum, the evidence of Don's statements concerning the Note was properly admitted under Evid. Code § 1250 as they prove the existing state of mind as it goes to the intent of Don. The statements of Don do not lead to a lack of trustworthiness given the substantiation of numerous witnesses on the issue.

C. The Application of Probate Code Section 21700

Plaintiffs contend that the Court's refusal to apply Probate Code Section 21700 to bar John's claim of equitable estoppel was erroneous. (Memo. of Ps and As at pp. 5-6.)

Probate Code § 21700 sets out requirements for a party to make "[a] contract to make a will or devise or other instrument, or not to revoke a will or devise or other instrument, or to die intestate" (Prob. Code § 21700.)

Plaintiffs raised the issue of Probate Code § 21700 in their trial brief, first supplement to their trial brief, and their closing argument brief. (Plaintiffs' Compendium of Exhibits, Exs. 3, 5, 7.) The Court finds that its refusal to apply Probate Code § 21700 was not erroneous. As stated in the Statement of Decision: "As this litigation involves only the Note and not a will or devise, Section 21700 does not apply." (Statement of Decision, p. 9:26-27 [italics added].)

Thus, the Court finds that the refusal of the Court to apply Probate Code Section 21700 does not warrant a new trial.

D. The Parol Evidence Rule

Plaintiffs contend that the Court's refusal to apply the Parol Evidence Rule has resulted in a miscarriage of justice which requires a new trial pursuant to Code Civ. Proc. § 657(7). (Memo. of Ps and As at pp. 7-10.) Initially, the Court finds that Plaintiffs' reliance on *Shaw v. McCaslin* (1942) 50 Cal.App.2d 467 is inapposite.

"Under the parol evidence rule, extrinsic evidence is not admissible to contradict express terms in a written contract or to explain what the agreement was. [Citation.] The agreement is the writing itself. [Citation.] . . . Parol evidence cannot . . . be admitted to show intention independent of an unambiguous written instrument. [Citation.]" (*Cerritos Valley Bank v. Stirling* (2000) 81 Cal.App.4th 1108, 1115-1116.)

The Court finds that its refusal to apply the parol evidence rule was proper. As set forth in the Statement of Decision: "[N]one of the 'extrinsic evidence' admitted at trial served to 'alter or modify' the Note itself. Therefore, it was, by definition, not parol evidence." (Statement of Decision, p. 8:14-15.) Moreover, as stated in *Bank of Beverly Hills v. Catin* (1982) 128 Cal.App.3d 28, 35:

"In rejecting the notion that the writing alone is to be consulted in determining integration to bar parol evidence, the court gave the following illustration of the new rule it was formulating: 'For example, a promissory note given by a debtor to his creditor may integrate all their present contractual rights and obligations, or it may be only a minor part of an underlying executory contract that would never be discovered by examining the face of the note.'"

(Bank of Beverly Hills v. Catain, supra, 128 Cal.App.3d 28, 35.)

Thus, the Court finds that its refusal to apply the parol evidence rule was appropriate.

E. Defendant's Affirmative Defenses

Plaintiffs assert that a new trial is warranted because the Court committed an error of law in allowing John to introduce evidence and argument regarding his affirmative defenses even though John admitted that he failed to properly plead those affirmative defenses. (Memo. of Ps and As at pp. 9-10.)

Plaintiffs raised a similar argument in their closing argument briefing. (Statement of Decision at p. 9:12-21.) The Court has reviewed the trial-related briefing of Defendant and does not find an admission therein that Defendant conceded to improper pleading of his affirmative defenses. Irrespective of such fact, the Court finds that it already rejected the argument as to the insufficiency of the affirmative defenses. (Statement of Decision, p. 9:14-15.) Critically, given that Plaintiffs did not demur to the answer or object "to the trying of the defenses[.]" the Court found that Plaintiffs waived any argument that the answer was insufficient. (Id. at p. 9:18-21.) Thus, the Court's reasoning in its Statement of Decision applies herein. The Court finds that the affirmative defenses of Defendants were proper.

Accordingly, the Court finds that a new trial is unwarranted based upon the consideration of the affirmative defenses of Defendants.

As a related matter, Plaintiffs argue that they are entitled to a new trial because the Court committed reversible error by concluding that John pled and proved the doctrine of equitable estoppel by clear and convincing evidence. (Memo. of Ps and As at pp. 12-13.) The Court finds such argument unpersuasive. Defendants presented evidence that equitable estoppel applies and, as such, enforcement of the Note is barred. (Statement of Decision, pp. 10-12.)

Finally, as to equitable estoppel, Plaintiffs assert that a new trial is warranted because the Court failed to limit the application of the doctrine of equitable estoppel from March 8, 2007, through March 11, 2009. (Memo. of Ps and As at p. 14:3-18.) Plaintiffs present Trial Exhibit No. 111, which is an e-mail from John to Don dated March 11, 2009. (Plaintiffs' Compendium of Evidence, Ex. 24.) In this e-mail, John emailed Don stating, inter alia, that he "was to inherit the note, but recent conversations [between John and Don] have led [him] to believe that's not going to happen." (Id.) Plaintiffs contend that "[d]espite that knowledge, John continued to make payments on the Note until two months [after] his father's death in 2022 . . ." (Memo. of Ps and As at p. 14:15-18.)

Plaintiffs are correct that Civil Code Section 3515 states as follows: "[a] person who consents to an act is not wronged by it." (Civ. Code § 3515.) However, Trial Exhibit No. 111 does not lead to a finding that the doctrine of equitable estoppel should be limited in scope. First, Exhibit No. 111 does not unequivocally state that John knew or admitted that he was not going to inherit the Note. Second, the argument that John knew he was not going to inherit the Note was raised in both the trial brief and the closing brief of Plaintiffs. (Plaintiffs' Compendium of Evidence, Exs. 3, 7.) Thus, again, Plaintiffs raise arguments that the Court previously considered and rejected. (See Statement of Decision at p. 10:8-9 ["To the extent this statement of decision fails to explicitly address Plaintiffs' other arguments, the court has considered those arguments and finds them to be without merit."].)

F. The Loan Agreement

Plaintiffs contend that they are entitled to a new trial on the Court's finding of the Loan Agreement. (Memo. of Ps and As at pp. 14-15.) Plaintiffs argue that their "counsel thought that the issues related to the Loan Agreement would be addressed by the court after the court ruled on John's affirmative defenses, and this is what Plaintiffs' counsel stated in their closing argument." (Id. at p. 14:26-15:1.) Plaintiffs did not intend to waive their right to argument that the monies due on the Loan Agreement remain unpaid. (Leight Decl. ¶ 26.)

The Court finds such argument unpersuasive. As set forth in the Statement of Decision, "Plaintiffs' counsel . . . gave an opening statement referencing the Loan." (Statement of Decision at p. 14:17.) The Court "before starting trial, expressly asked whether Plaintiffs waived jury on the Plaintiffs' case in chief. Immediately, thereafter, the court stated it would commence a 'court trial on the entirety of the case.'" (Id. at p. 14:14-16.) At trial, defense counsel elicited testimony regarding the loan. (Id. at p. 14:19-21.) Plaintiffs' counsel, although such testimony was irrelevant to the Note, "never objected or questioned the Court's pretrial assertion that it was assessing both the enforceability of the promissory note and the repayment of the Loan." (Id. at p. 14:21-24.) Plaintiffs failed to argue the Loan Agreement claim in their closing brief and, as such, the Court found that "Plaintiffs have voluntarily waived their opportunity to argue the merits of the collection of the Loan." (Id. at p. 14:24-27.)

In sum, the fact that Plaintiffs' counsel misunderstood the relevant issues—and did not seek clarification from the Court—does not warrant a new trial on the Court's finding concerning the Loan Agreement.

Accordingly, Plaintiffs have not shown grounds for a new trial pursuant to Code Civ. Proc. §§ 657(1)-(7).

CONCLUSION

Based on the foregoing, Plaintiffs' motion for a new trial is DENIED.

Prevailing party on motion is ordered to give notice of ruling.